

EXCEPTION TO FAIR OPPORTUNITY
IN ACCORDANCE WITH FEDERAL ACQUISITION REGULATION (FAR)
16.505(b)(2)(ii)(B)
BRAND NAME
273FCC26F0035 - Quantifind GraphyteSearch

1. Identification of the agency and the contracting activity, and specific identification of the document as a 'Justification for an Exception to Fair Opportunity.'

This justification was prepared in accordance with FAR 16.505 by the Federal Communications Commission (FCC), Headquarters (HQ), Office of the Managing Director (OMD), Enterprise Acquisition Center (EAC) located at 45 L Street NE, Washington, DC 20554. The managing program is the Public Safety and Homeland Security Bureau (PSHSB).

2. Nature and/or description of the action being approved.

To effectively manage risks to the U.S. communications sector and all dependent critical infrastructure sectors and resources, the FCC requires an integrated solution enabling FCC staff to analyze data from disparate sources and identify entities, equipment, and services that are potentially owned, controlled, or influenced by foreign adversarial countries.

The Secure and Trusted Communications Networks Act of 2021 directed the Federal Communications Commission (FCC) to publish and update on its website a list of any communications equipment or service that poses an unacceptable risk to the national security of the United States or the security and safety of United States persons. These determinations are made by executive branch interagency bodies with appropriate national security expertise, including the Federal Acquisition Security Council (FASC); by the Department of Commerce pursuant to Executive Order No. 13873; by an appropriate national security agency; or for any communications equipment or services defined as covered telecommunications equipment or services under section 889(f)(3) of the John S. McCain National Defense Authorization Act of 2019. Updating this list—particularly identifying subsidiaries and affiliates of entities on the covered list—requires the ability to access and analyze official company filings and other public data available across hundreds of thousands of sources in multiple formats.

Further, PSHSB is responsible for responding to requests for information from the determining bodies mentioned in the STCNA, the Committee on Foreign Investment in the United States (CFIUS), and the Committee for the Assessment of Foreign Participation in the U.S. Telecommunications Services Sector (Team Telecom) which may solicit FCC feedback on investigations and cases which assess the national security risks of certain communications companies, equipment, and services. These requests for support require a rapid response in order to meet statutory deadlines. For these purposes, the FCC is in need of one or more solutions enabling the expedited analysis of aggregated data from multiple data streams and sources. Data sources would provide insights into company ownership; investment and investor stakeholders and percentages; consumers; tariff or sanction data.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

Product: Quantifind GraphyteSearch Licenses

Description: Quantifind is a readily-available, Artificial Intelligence-enabled research database that persistently inventories publicly available information relating to business ownership, investment, trade, tariff, sanction data, and media information relating to specific businesses, people, research entities, and academic institutions. Quantifind automatically scans across a broad range of public and online data including online news sources, company registration data, and leaks databases; seeds queries with minimally available information as a name or email address to cultivate analyses leading to the discovery of supply chain risk factors on transaction counterparties and other non-customers; assesses risk relationships by revealing the entities related to a known individual or business that are surfaced from across the external data and rank-ordered for risk and relevancy; verification of Ultimate Beneficial Ownership (UBO) when risk exposure is high; automated report generation; and the ability to integrate FCC-specific data and enable case management. Further, Quantifind offers the ability to integrate external data sources through Application Programmable Interface (API) management.

Estimated Annual Value: [REDACTED]

Period of Performance: Base year + 4 option years

Base Year + 4 Option Years (3% Escalation)

Year	GraphyteSearch Large 12-18 Seats	Wirescreen Lite 18 seats	Batch Screening 500 entities	Total per Year
Base Year	[REDACTED]			
OY 1				
OY 2				
OY 3				
OY 4				

Grand Total for 5 Years

[REDACTED]

4. An identification of the exception to fair opportunity rationale and supporting rationale.

Selected Exception: FAR 16.505(b)(2)(i)(B) — Only one brand name is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Brand Name Justification: This acquisition is for Quantifind GraphyteSearch, a brand name product. Market research confirmed that no other solution meets FCC's technical requirements for integrated supply chain risk analysis, API integration, and automated risk scoring at the required quality and price point.

DATA PRIORITY	DESCRIPTION
% Foreign Ownership Market Share	Ability to assess ownership percentage to determine foreign control or influence; includes itemized breakdown of business structure, parent entities, subsidiaries, affiliates, and historical changes.
Board Composition Information	Characterize board composition; identify relationships between board members and entities; correlate identities with pseudonyms and historical records.
Executive Suite Profiles	Characterize executive personnel; identify relationships posing risk; similar data as board composition.
Supplier Names / Products	Understand supply chain to identify risks, especially entities using services/equipment on FCC Covered List.
Supplier Relationships	Understand entity relationships with suppliers and interrelationships among suppliers.
Subsidiary Names	Maintain list of subsidiaries and affiliates, including non-FCC-regulated entities.
Subsidiary Relationships	Understand relationships among subsidiaries and affiliates for legal justification.
Affiliate Names	Maintain list of affiliates.
Affiliate Relationships	Understand affiliate relationships for legal justification.
Integrates FCC Data	Integrate FCC data for reconciliation against licensing, waivers, STAs, equipment authorizations, ownership, and historical info; ingest non-standardized data.
Link-end / Network Analysis	Visualize connections among entities, subsidiaries, affiliates, executives, board members, and supply chain.
Batch Updates	Notify FCC personnel of updates on analytical subjects/targets.
Distributor / Reseller Names / Products	Understand RF equipment distribution paths to identify risks from FCC Covered List items.
Distributor / Reseller Relationships	Understand relationships between manufacturers and distributors/resellers.
OEM Relationships / Products	Identify manufacturing, white-labeling, or similar agreements involving FCC Covered List entities.
Integrates Data from Other Agencies	Ingest information from interagency agreements (e.g., Team Telecom).
Events	Capture events, news, media, or other info impacting specific entities, services, or equipment.

5. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The anticipated cost is fair and reasonable compared to similar solutions that are less capable and higher priced. The requested brand name provides the best value to the Government by satisfying all technical requirements with substantial cost savings. The order will be placed under the NASA SEWP GWAC, ensuring competition among authorized resellers. Basis for award will be Lowest Price Technically Acceptable (LPTA) and the task order will be Firm Fixed Price (FFP). Therefore, the price paid will represent the best value and result in the lowest overall cost alternative to meet FCC needs. The ordering activity has concluded that this approach ensures best value and fair pricing based on brand name competition under an established GWAC.

6. Any other facts supporting the justification.

The FCC evaluated 17 potential solutions and determined that Quantifind offers the most comprehensive and cost-effective option. Key findings from the assessment include:

1. Altana, Blue Yonder, CentralSight, Fusion Risk Management (Gartner), Hyperproof, Insight Software, and Palantir Foundry: These products focus on internal enterprise supply chain management and do not provide insights into external business ownership information, which is critical for FCC requirements.
2. Exiger and Govini: Both lacked turnkey capabilities without significant integration efforts and were priced approximately 300% higher than the FCC's budget.
3. Resilinc: Unable to meet several key technical requirements.
4. Bluevoyant (via Evince partnership): Provides useful data but lacks a functional dashboard for FCC personnel, limiting operational usability.
5. WireScreen: Offers strong China-specific insights; however, this data is already integrated within Quantifind, which provides a broader and more complete solution.
6. Datenna: Limited to China-specific information, insufficient for FCC's global risk analysis needs.
7. Thomson Reuters Clear: Excellent for U.S.-based business structures and investments but provides minimal coverage of non-U.S. entities, which are essential for foreign ownership analysis.
8. Tangles: Specializes in dark-web and publicly available metadata on individuals, useful for research on persons affiliated with foreign-owned companies, but does not meet the full scope of FCC requirements.

Conclusion: Quantifind delivers the most complete solution, meeting critical technical requirements at a significantly lower cost than competitors, while enabling integration with FCC systems and providing advanced analytics capabilities.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers.

The FCC plans to leverage cost savings to explore complementary solutions (e.g., Datenna, CLEAR, Tangles) to close any remaining gaps in future acquisitions. To remove barriers to competition, the Public Safety and Homeland Security Bureau (PSHSB) has conducted extensive

market research and will continue to do so in accordance with FAR Part 10 (Market Research). This includes:

- Reviewing required sources prescribed in FAR Part 8, such as mandatory sources of supply, GSA Federal Supply Schedules, and Governmentwide Acquisition Contracts (GWACs).
- Evaluating small business participation opportunities by utilizing NASA SEWP, which is a GWAC that promotes competition among small businesses.
- Checking for alternative solutions and substitutes to ensure that future acquisitions do not unnecessarily restrict competition.

While this acquisition specifies a brand name requirement, this is justified under FAR 11.104 (Use of Brand Name or Equal Purchase Descriptions) due to unique technical capabilities necessary to meet mission requirements. However, competition is still being conducted among multiple small business resellers on NASA SEWP, ensuring compliance with FAR Competition Requirements and maximizing opportunities for small business participation. Additionally, the agency will continue to monitor the marketplace for emerging technologies and vendors to reduce reliance on brand-specific solutions in future procurements. This proactive approach will help mitigate barriers and foster a more competitive environment.

8. Certifications.

Technical Representative/Contracting Officer Representative (COR) Certification:

I certify that the facts and representations under my cognizance, which are included in this justification and which form a basis for this justification, are complete and accurate.

Name/Title/Office

Signature and Date

Contracting Officer

I certify that this justification

Name/Title/Office

Signature and Date

Competition Advocate

I have reviewed this justification with my knowledge and belief

Name/Title/Office

Signature and Date